

1 HOUSE BILL NO. 416

2 INTRODUCED BY J. HINKLE, L. BENNETT, C. SCHOMER, E. BUTTREY, K. ZOLNIKOV, B. BARKER, N.

3 DURAM, T. FALK, T. FRANCE, B. MITCHELL

4
5 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING REQUIREMENTS FOR A HOMEOWNERS'
6 ASSOCIATION TO SEEK PERMISSION FOR ENTRY ON REAL PROPERTY; PROVIDING THAT AN OWNER
7 OF REAL PROPERTY MAY REQUIRE THAT THE OWNER OR THE OWNER'S AGENT BE PRESENT; AND
8 PROVIDING A DEFINITION."

9
10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

11
12 NEW SECTION. **Section 1. Requirements for entry on real property by agent of a homeowners'**
13 **association.** (1) (a) A homeowners' association must receive permission from an owner of real property before
14 an agent of the homeowners' association may enter the property.

15 (b) When seeking permission for an agent of the homeowners' association to enter the property,
16 the homeowners' association shall:

- 17 (i) seek to establish a date and time to enter the property that is convenient to the owner; and
18 (ii) specify what part of the property the agent of the homeowners' association seeks to access.

19 (2) An owner of real property may require that the owner or the owner's agent be present when an
20 agent of the homeowners' association enters the property.

21 (3) This section does not affect any implied license an agent of a homeowners' association has as
22 a member of the public to access the areas of real property generally open to the public, such as sidewalks,
23 front pathways, or the front door of a house.

24 (4) As used in this section, "homeowners' association" means an association of all the owners of
25 real property within a geographic area defined by physical boundaries that:

- 26 (a) is formally governed by a declaration of covenants, bylaws, or both;
27 (b) may be authorized to impose assessments that, if unpaid, may become a lien on a member's
28 real property; and

1 (c) may enact or enforce rules concerning the operation of the community or subdivision.

2

3 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
4 integral part of Title 70, chapter 16, part 1, and the provisions of Title 70, chapter 16, part 1, apply to [section 1].

5 - END -